Virginia Conservatorship Authority Digest

Commonwealth of Virginia • provisions in force as of January 1, 2025

Purpose and source

This offline digest consolidates the Virginia statutory provisions used for the conservator communication product. It is a source extract/digest, not a case-specific order. Section references identify the governing provisions; the court appointment and any later order control where more specific.

1. Fiduciary role and limits — Va. Code §§ 64.2-1200, 64.2-1205

A conservator is a fiduciary appointed to manage the estate of an incapacitated person. The conservator acts for the protected person and under the authority and limits of the appointment and applicable law; the conservator does not become the owner of the protected person's property or obtain unlimited control over the person's identity or ordinary life decisions.

2. Estate property, care, and prudent management — Va. Code §§ 64.2-1205, 64.2-1206

The conservator shall take possession of, manage, and protect estate assets for the protected person, applying income and principal for the person's needs and proper administration. Fiduciary conduct requires care, loyalty, preservation of value, reasonable liquidity for needs, and avoidance of self-dealing or unnecessary risk. Estate property and fiduciary records must be kept identifiable and separate from the fiduciary's property.

3. Inventory and records — Va. Code §§ 64.2-1209, 64.2-1212

A conservator must identify estate assets and file the required inventory. The fiduciary must keep complete, accurate records and vouchers sufficient for review by the Commissioner of Accounts or court, including statements, receipts, invoices, confirmations, and court papers. Records must be produced when required.

4. Accounts and reconciliation — Va. Code §§ 64.2-1210, 64.2-1211

The conservator files an account with the Commissioner of Accounts for each required accounting period. An account reports the beginning balance, receipts, disbursements, and ending assets/balance, with supporting vouchers and statements. The figures must reconcile: beginning balance + receipts − disbursements = ending balance. The first account is generally due six months after qualification; later accounts are generally annual and due within four months after the period closes, subject to the court/Commissioner's instructions and any applicable extension procedure.

5. Gifts and extraordinary transactions — Va. Code §§ 64.2-1205, 64.2-1208

A conservator may not make a gift of estate property merely because it seems generous, benefits family, or reflects what the protected person might have wanted. A gift or other extraordinary disposition requires the legally required prior court authority; obtain that authority before transferring money or property. Approval does not replace accurate records or reporting.

6. Reimbursement and compensation — Va. Code §§ 64.2-1205, 64.2-1213

A fiduciary may seek reimbursement for a genuine estate expense and may receive compensation only as permitted by law, the court, or the Commissioner. Each amount must be reasonable, connected to estate administration or the protected person, and supported by a clear record. A personal withdrawal is not made proper by labeling it reimbursement.

7. Conflicts and integrity — Va. Code §§ 64.2-1205, 64.2-1212

The fiduciary must act loyally for the protected person. A transaction benefiting the conservator or a related person presents a conflict and should be held, disclosed, and handled only with the authority required by law or court. A missing document is not permission to invent, backdate, conceal, or silently omit a transaction; disclose the gap and preserve proof of follow-up.

8. Filing problems and extensions — Va. Code §§ 64.2-1210, 64.2-1212

If an account cannot be completed or a required record is unavailable, the fiduciary should document the specific gap, request the missing item, keep interim proof, and promptly contact the Commissioner of Accounts or court about the applicable filing or extension

process. Do not ignore the due date or file a knowingly misleading account.

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